

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

DOCKET NO. 24-01

Served: July 31, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

MEMORANDUM ORDER ON MOTIONS TO COMPEL

I. Background

On July 17, 2024, the undersigned issued a Partial Order on Motions to Compel, Motion for Entry of Protective Order and Motion for Enlargement of Page Limits (“Partial Order”).¹ On July 29, 2024, I conducted a video conference with the parties to address the remaining discovery issues regarding Respondent’s motion to compel interrogatories and Complainant’s motion to compel production of documents. As ordered, Respondent, prior to the video conference, provided a list of interrogatories for which it still wanted responses.

As explained further below, the parties were asked their positions on the outstanding discovery requests, and each provided their arguments for and against the motions and explained their respective positions. Respondent’s motion to compel responses to certain interrogatories is **GRANTED IN PART** and **DENIED IN PART**. Complainant’s motion to compel production of documents sought in Request No. 6 is **GRANTED**.

II. Motion to Compel Standard of Review

As previously stated in the July 17, 2024 Partial Order, the Commission’s Rules permit discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense.” 46 C.F.R. § 502.141(e)(1).

¹ The Partial Order addressed two of the three motions to compel filed in this proceeding. Respondent filed two separate motions to compel on May 30, 2024, and Complainant filed a motion to compel production of documents on June 1, 2024.

III. Motions to Compel

a. Respondent's Motion to Compel Responses to Interrogatories

There appeared to be some confusion as to what was required when responding to interrogatories, and that was discussed at the video conference. To the extent that documents are identified as necessary to respond to an interrogatory, or were produced pursuant to the Partial Order, Complainant was instructed to identify or list the documents or the facts sought, not just produce the document.

Several interrogatories were identified as resolved by Complainant's Supplemental Responses served shortly before the video conference. The resolved interrogatories include Nos. 3, 12, 16, and 23 and Complainant will not be compelled to respond further.

Interrogatories Nos. 9 and 10 are duplicative, and Respondent stated it would withdraw Interrogatory No. 10 if the facts sought in Interrogatory No. 9 are provided. Complainant agreed to respond by listing the facts sought in Interrogatory No. 9 and is compelled to do so.

Many interrogatories were identified as no longer objectionable, and Complainant intended to respond to them by July 31, 2024, pursuant to the date set in the Partial Order. These interrogatories include 8, 13, 15, 17-22 (this set are interrelated with each other, all seeking information regarding Allegation 24 in the Complaint), 26-28 (and it was noted that these three interrogatories are duplicative and can likely be responded to together), and Complainant is compelled to respond. Interrogatory No. 29 seeks information already sought in preceding interrogatories and will not be compelled.

Interrogatory No. 11 seeks identification of any service contract Complainant alleges it had with Respondent, and it responded that it had none. The remainder of the interrogatory that asks Complainant to identify any COSCO bill of lading in which Complainant is listed as a shipper or consignee was established as information not in the custody or control of Complainant. If Complainant does not have COSCO bills of lading, and COSCO will not accept house bills of lading, shipments numbers, or container numbers for identification purposes (it asserted at the hearing NVOCCs issue those and they cannot search those terms), then Complainant cannot provide any further answer the interrogatory. It was further established in discussion of Interrogatory 11 and related to Interrogatory 25, that COSCO has invoices that may assist Complainant in identifying the shipments by COSCO bills of lading, but Respondent has not produced those documents. Accordingly, Interrogatory No. 11 part 2 and Interrogatory 25 need not be answered until Respondent produces the invoices it issued to RIM as it stated at the video conference it could provide. To the extent the upcoming NVOCC depositions Complainant identified in the video conference yield information on COSCO bills of lading or COSCO invoices that contained VCC's cargo, Complainant should provide that information to Respondent, and Respondent should search for corresponding documents.

c. Complainant's Motion to Compel Production of Documents

Turning now to Complainant's motion to compel, the Partial Order allowed Complainant at the video conference to clarify and explain its position with respect to document request ("RFD") No. 6. Complainant's First Motion to Compel Production of Documents ("C MTC

Docs”) at 1-6; Partial Order at 8-9; C MTC Docs Attachment A at 4. Without repeating the RFD here, I note that this request overlapped with their Supplemental Request No. 5. The parties explained their positions, including the relevance of the request, and I agreed with Complainant that Respondent must provide the information sought. No date was set at the conference by which the documents must be provided, but Respondent indicated that they first need to agree to an electronically stored information (ESI”) protocol and create search terms. I offered assistance to the parties in their efforts to agree to an ESI protocol and acknowledge that production of the communications sought in RDF No. 6 will be slowed due to not having an ESI protocol in place. Typically, establishing an ESI protocol is done early in a proceeding, and in the future, the parties should consider establishing an ESI protocol at the outset of discovery. For further information regarding requests and production of ESI, the parties are referred to 46 C.F.R. § 502.146. Respondent must produce the outstanding documents by the date below.

IV. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth at the video conference and above, it is hereby

ORDERED that Respondent COSCO’s Motion to Compel Adequate Responses to Requests for Admission and Interrogatories is **GRANTED IN PART** and **DENIED IN PART**. It is

FURTHER ORDERED that Complainant VCC’s Motion to Compel Production is **GRANTED IN PART** and **DENIED IN PART**. It is

FURTHER ORDERED that Respondent and Complainant are compelled to provide the responses to interrogatories and documents described above no later than August 14, 2024. It is

The parties were previously ordered to submit a joint status report by August 2, 2024, regarding the status of discovery, including whether the parties have followed the temporary schedule and proposing an amended schedule if needed. This order remains in place.



Linda S. Harris Crovella
Administrative Law Judge